

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN HOFMEYER,

Petitioner

VS.

GABRIELA HOFMEYER,

Respondent

) Case Number: FDI-18-790640

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ESTABLISH DATE OF SEPARATION AS AUGUST 13, 2018; REQUEST
FOR ORDER TEMPORARY STAY OF PROPERTY SALE/SORT-SALE ACTIVITY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Petitioner's Request for Order Filed 3/2/2026

- 1) On 3/2/2026, Petitioner John Hofmeyer filed a Request for Order asking the Court for a temporary stay of enforcement of the provision within the Stipulation and Order filed 1/9/2024 concerning a short sale of the condominium located at 245 5th Street, Unit 201, San Francisco, California.
- 2) On 4/15/2026, Respondent Gabriela Hofmeyer filed a Responsive Declaration asking the Court to deny Petitioner's requested relief.
- 3) On the Court's own motion, the hearing on Petitioner's 3/2/2026 Request for Order is hereby continued to **6/23/2026 at 9:00 AM in Dept. 404** to join the hearing already set on that date on a Petitioner's related Request for Order filed 5/4/2026.

1 **B. Petitioner's Request for Order Filed 4/6/2026**

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- 3 1) On 4/6/2026, Petitioner filed a Request for Order asking the Court to make a finding that the
- 4 parties' date of separation is 8/13/2018.
- 5 2) On 5/14/2026, Respondent filed a Responsive Declaration which states: "There is no actual
- 6 dispute regarding Petitioner's proposed date of separation. However, the issue of date of
- 7 separation is ultimately a trial issue and is therefore not appropriate for determination through the
- 8 present hearing process. The parties could have resolved The parties could have resolved this
- 9 matter informally and without court intervention. Because there is no contention requiring
- 10 immediate determination, judicial resources need not be expended on a separate hearing
- 11 regarding the issue. Accordingly, Respondent respectfully requests that the Court make a finding
- 12 adopting Petitioner's date of separation and vacate the presently scheduled hearing on this issue."
- 13 3) The Court finds that the parties' date of separation is 8/13/2018.
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15 **C. Preparation of Order**

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- 17 1) The Court will prepare the Findings and Order After Hearing.
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